

BEFORE THE BOARD OF BEHAVIORAL SCIENCE EXAMINERS
OF THE STATE OF IOWA

IN THE MATTER OF	)	NO. 05 - 006
	)	
JAMES MCCAULEY,	)	NOTICE OF HEARING
	)	
RESPONDENT.	)	

COMES NOW the Iowa Board of Behavioral Science Examiners and files this Notice of Hearing pursuant to Iowa Code Sections 17A.12(2) and 17A.18(3). Respondent was issued Iowa license no. 131 00736 on January 19, 2001. That license expired on September 30, 2006 and is currently inactive.

A. TIME, PLACE AND NATURE OF HEARING

A disciplinary contested case hearing shall be held on February 9, 2007, before the Board of Behavioral Science Examiners. The hearing shall begin at 9:00 a.m. and shall be located in the Lucas State Office Building, Fifth Floor Board Conference Room # 526, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on prehearing matters, and be present to assist and advise the board at hearing.

Within twenty (20) days of the date you are served this Notice of Hearing you are required by 645 Iowa Administrative Code 11.12 to file an Answer. In that Answer, you should also state whether you will require an adjustment of the date and time of the hearing. At hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 641 Iowa Administrative Code Chapter 11.

The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Pleadings shall be filed with the Board and copies should be provided to counsel for the State at the following address: Heather L. Adams, Assistant Attorney General, Iowa Attorney General's Office, 2nd Floor, Hoover State Office Building, Des Moines, Iowa 50319.

B. LEGAL AUTHORITY AND JURISDICTION

The Board has jurisdiction in this matter pursuant to Iowa Code Chapters 147, 154D, and 272C (2005). If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code Chapters 17A, 147, 154D, and 272C (2005) and 645 Iowa Administrative Code Chapter 33. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code Section 17A.12(3) and 645 Iowa Administrative Code 11.21.

C. SECTIONS OF STATUTES AND RULES INVOLVED

Count I

Respondent is charged pursuant to Iowa Code section 272C.10(3) and 645 IAC 33.2(4) & (29) with engaging in unethical conduct.

Count II

Respondent is charged pursuant to 645 IAC 33.2(1) with failure to comply with the current Code of Ethics of the American Mental Health Counselors Association (AMHCA) Code of Ethics, including a failure to comply with Principle 1: Welfare of the Consumer, including violations of sections F) Dual Relationships, G) Sexual Relationships, and H) Former Clients.

Count III

Respondent is charged pursuant to 645 IAC 33.2(14) with revocation, suspension, or other disciplinary action taken by a licensing authority of this state, another state, territory, or country; and with failure by the Respondent to report in writing to the board the revocation taken by a licensing authority within 30 days of the final action.

D. STATEMENT OF MATTERS ASSERTED

A Statement of the Matters Asserted was reviewed and approved by the Board at the time this Notice of Hearing was filed. A Statement of the Matters Asserted shall be furnished to Respondent as an attachment to this Notice, but is not a public record as of the date of issuance of the Notice of Hearing. Upon issuance of the Board's final decision after hearing or upon the Board's approval of a settlement agreement, the Statement of Matters Asserted is a public record.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 Iowa Administrative Code chapter 12. If you are interested in pursuing settlement of this matter, please contact Heather Adams, Assistant Attorney General, at 515.281.3441.

F. PROBABLE CAUSE FINDING

On this ____ day of _____, 2006, the Iowa Board of Behavioral Science Examiners found probable cause to file this Notice of Hearing.

_____, Chairperson
Iowa Board of Behavioral Science Examiners

Copies to:

Heather L. Adams
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor Hoover Bldg.
Des Moines, IA 50319
515.281.3441

Respondent